of the whole purpose of the Constitution, embedded in the chapter on directive principles: the ‘social’ revolution that would transform India. The First Amendment was Nehru’s answer to this conundrum: make the Constitution bend to the government’s will, overcome the courts and pre-empt any further judicial challenges. It embodied, to borrow a term from the historian C.A. Bayly, ‘Nehru’s judgment’ and his belief in a conception of ‘liberal communitarianism’.[30]



EVENTUALLY PASSED BY Parliament after a stormy session on 2 June 1951, the Constitution (First Amendment) Act had four prongs. Firstly, it introduced new grounds to curb the freedom of speech enumerated in Article 19 – public order, the interests of the security of the state and relations with foreign states. These had previously been limited to libel, slander, defamation, morality or any matter that undermined the security of or tended to overthrow the state. The addition of these new grounds drastically lowered the bar for legislation abridging free speech and provided the constitutional infrastructure to greatly expand the government’s legal arsenal to clamp down on dissenting voices. Much against Nehru’s wishes, B.R. Ambedkar and other members of the Cabinet insisted on the term ‘reasonable restrictions’ to ensure that the judiciary retained its ability to adjudicate on any consequent legislation.

Secondly, it enabled community-based reservations by restricting the freedom against discrimination by stating that nothing in the said article would prevent the state from making special provisions for any socially or educationally backward classes of citizens. This proviso allowed the government to privilege group rights based on caste or community over individual rights and substantively evade both the right to freedom from discrimination and the right to equality in the pursuit of social justice. Notably, the proviso excluded any mention of economic backwardness in order to ensure that caste remained the primary criteria for assessing the